

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Russo	Team: Squad #10	CCRB Case #: 202208026	☒ Force ☒ Discourt. ☒ U.S. ☒ Abuse ☐ O.L. ☒ Injury	
Incident Date(s) Saturday, 11/19/2022 1:25 AM, Saturday, 11/19/2022 1:47 AM, Saturday, 11/19/2022 1:54 AM, Thursday, 01/04/2024 1:29 PM	Location of Incident: Southeast Corner Briggs Avenue and East 196th Street; 52nd Precinct stationhouse		18 Mo. SOL 5/19/2024	Precinct: 52
Date/Time CV Reported Tue, 11/22/2022 3:08 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/22/2022 3:08 PM	

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Tyler Hanson	17921	966611	052 PCT
2. PO Kevin Hickey	17829	958695	052 PCT
3. PO Matthew Guerrido	03121	965737	052 PCT
4. An officer			052 PCT
5. PO Ricardo Maldonado	12654	967592	052 PCT
6. PO Roy Valentin	11808	961399	052 PCT
7. SGT Craig Basler	00544	933636	052 PCT
8. PO Brandon Piehler	17837	968070	052 PCT
9. PO Daniel Rinaldi	21689	968743	052 PCT
10. PO Beggad Mohamed	21749	959823	052 PCT
11. PO Erica Silhan	18405	968130	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Ariel Eusebio	19648	958565	052 PCT
2. PO Clark Poccia	27579	972180	052 PCT
3. DTS Krystal Weddell	00753	933928	052 PCT
4. PO Debra Cotter	16806	943384	052 PCT
5. PO Ronald Urgiles	07711	964815	052 PCT
6. PO Luis Sanchezjimenez	09725	969352	052 PCT
7. PO Justin Larocchia	10656	970653	052 PCT
8. PO Nanakwame Mensah	05995	970701	052 PCT
9. PO Albert McBride	23241	969960	052 PCT
10. PO Emily Marcus	26446	969936	052 PCT
11. PO Edgar Zayas	00617	961584	052 PCT
12. SGT Vladimir Ravich	04954	944923	052 PCT
13. LT Ivan Kolovic	00000	935131	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
14. PO Tania Mejia	26875	968635	052 PCT
15. SGT Jose Rosa	05148	942474	052 PCT
16. PO Elvis Hidalgorodriguez	19257	968491	052 PCT
17. LT SA Ray Sanchez	00000	942504	052 PCT
18. PO Colin Coughlan	16114	967463	052 DET
19. PO Michael Murphy	24816	969243	052 PCT
20. PO Benjamin Fein	12382	971431	052 PCT
21. PO Joshua Negron	01445	970734	052 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Tyler Hanson	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Tyler Hanson hit § 87(2)(b) against a vehicle.	A . Unfounded
B . PO Tyler Hanson	Abuse: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Tyler Hanson interfered with § 87(2)(b) use of a recording device.	B . Unfounded
C . PO Matthew Guerrido	Abuse: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Matthew Guerrido interfered with § 87(2)(b) use of a recording device.	C . Unfounded
D . PO Matthew Guerrido	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Matthew Guerrido used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . PO Roy Valentin	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Roy Valentin used physical force against § 87(2)(b)	E . Within NYPD Guidelines
F . PO Ricardo Maldonado	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Ricardo Maldonado used physical force against § 87(2)(b)	F . Within NYPD Guidelines
G . PO Kevin Hickey	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Kevin Hickey used physical force against § 87(2)(b)	G . Within NYPD Guidelines
H . PO Tyler Hanson	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Tyler Hanson used physical force against § 87(2)(b)	H . Within NYPD Guidelines
I . PO Ricardo Maldonado	Discourtesy: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Ricardo Maldonado spoke discourteously to § 87(2)(b)	I . Within NYPD Guidelines
J . An officer	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, an officer used a chokehold against § 87(2)(b)	J . Officer(s) Unidentified
K . An officer	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, an officer restricted § 87(2)(b) breathing.	K . Officer(s) Unidentified
L . PO Ricardo Maldonado	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Ricardo Maldonado used physical force against § 87(2)(b)	L . Substantiated
M . PO Ricardo Maldonado	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Ricardo Maldonado used physical force against § 87(2)(b)	M . Substantiated
N . PO Roy Valentin	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Roy Valentin used physical force against § 87(2)(b)	N . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
O . PO Ricardo Maldonado	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Ricardo Maldonado used physical force against § 87(2)(b)	O . Unable to Determine
P . PO Roy Valentin	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Roy Valentin used physical force against § 87(2)(b)	P . Unable to Determine
Q . PO Tyler Hanson	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Tyler Hanson used physical force against § 87(2)(b)	Q . Within NYPD Guidelines
R . PO Tyler Hanson	Abuse: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Tyler Hanson interfered with § 87(2)(b) use of a recording device.	R . Unfounded
S . SGT Craig Basler	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Sergeant Craig Basler used physical force against § 87(2)(b)	S . Within NYPD Guidelines
T . SGT Craig Basler	Discourtesy: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Sergeant Craig Basler spoke discourteously to § 87(2)(b)	T . Within NYPD Guidelines
U . PO Brandon Piehler	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Brandon Piehler used physical force against § 87(2)(b)	U . Within NYPD Guidelines
V . PO Beggad Mohamed	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Beggad Mohamed used physical force against § 87(2)(b)	V . Within NYPD Guidelines
W . PO Daniel Rinaldi	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Daniel Rinaldi used physical force against § 87(2)(b)	W . Within NYPD Guidelines
X . PO Erica Silhan	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Erica Silhan used physical force against § 87(2)(b)	X . Miscellaneous - Subject Resigned
Y . PO Erica Silhan	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Erica Silhan used physical force against § 87(2)(b)	Y . Miscellaneous - Subject Resigned
Z . PO Daniel Rinaldi	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Daniel Rinaldi used physical force against § 87(2)(b)	Z . Within NYPD Guidelines
AA. PO Daniel Rinaldi	Discourtesy: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Daniel Rinaldi spoke discourteously to § 87(2)(b)	AA. Substantiated
AB. PO Erica Silhan	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Erica Silhan hit § 87(2)(b) against a vehicle.	AB. Miscellaneous - Subject Resigned
AC. PO Daniel Rinaldi	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Daniel Rinaldi hit § 87(2)(b) against a vehicle.	AC. Within NYPD Guidelines
AD. PO Daniel Rinaldi	Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Daniel Rinaldi used physical force against § 87(2)(b)	AD. Unfounded
AE. PO Ricardo Maldonado	Abuse: On November 19, 2022, at 1:47 a.m., at the 52nd Precinct Stationhouse, Police Officer Ricardo Maldonado made a sexually suggestive gesture towards § 87(2)(b)	AE. Substantiated
AF. PO Tyler Hanson	Abuse: On November 19, 2022, 1:54 a.m., at 3016 Webster Avenue in the Bronx, Police Officer Tyler Hanson searched § 87(2)(b) vehicle.	AF. Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
AG. PO Matthew Guerrero	Abuse: On November 19, 2022, at 1:54 a.m., at 3016 Webster Avenue in the Bronx, Police Officer Matthew Guerrero damaged § 87(2)(b) property.	AG. Unable to Determine
AH. PO Kevin Hickey	Abuse: On November 19, 2022, at 1:54 a.m., at the 52nd Precinct Stationhouse, Police Officer Kevin Hickey damaged § 87(2)(b) property.	AH. Unable to Determine
AI. PO Ricardo Maldonado	Abuse: On November 19, 2022, at 1:54 a.m., at the 52nd Precinct Stationhouse, Police Officer Ricardo Maldonado damaged § 87(2)(b) property.	AI. Unable to Determine
AJ. PO Tyler Hanson	Abuse: On November 19, 2022, at 1:54 a.m., at the 52nd Precinct Stationhouse, Police Officer Tyler Hanson damaged § 87(2)(b) property.	AJ. Unable to Determine
AK. PO Roy Valentin	Abuse: On November 19, 2022, at 1:54 a.m., at the 52nd Precinct Stationhouse, Police Officer Roy Valentin damaged § 87(2)(b) property.	AK. Unable to Determine
AL. PO Roy Valentin	Abuse: On November 19, 2022, at 1:54 a.m., at the 52nd Precinct Stationhouse, Police Officer Roy Valentin improperly used his body-worn camera.	AL. Substantiated
AM. PO Ricardo Maldonado	Untruthful Stmt.: On January 04, 2024, at 100 Church Street in Manhattan, Police Officer Ricardo Maldonado provided a false official statement to the CCRB.	AM. Substantiated
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]

Case Summary

On November 22, 2023, § 87(2)(b) filed this complaint with the CCRB via phone.

On November 19, 2022, at approximately 1:25 a.m., in the vicinity of the southeast corner of Briggs Avenue and East 196th Street in the Bronx, Police Officers Kevin Hickey, Matthew Guerrido, Tyler Hanson, Ricardo Maldonado, and Roy Valentin, all of the 52nd Precinct, stopped the vehicle in which § 87(2)(b) his girlfriend, § 87(2)(b) his 14-year-old daughter, § 87(2)(b) his mother, § 87(2)(b) and two young children were occupants. § 87(2)(b) an employee at a nearby church, was a witness to portions of this incident.

As § 87(2)(b) attempted to exit the vehicle, PO Hanson allegedly closed the front passenger door on her leg and told her she could not record (**Allegation A: Force-Physical Force, unfounded**) (**Allegation B: Abuse of Authority-Interference with recording device, unfounded**). As she exited through the driver's side door, PO Guerrido allegedly blocked § 87(2)(b) recording by placing his body in front of the camera (**Allegation C: Abuse of Authority-Interference with recording device, unfounded**). PO Guerrido pushed § 87(2)(b) back into the vehicle (**Allegation D: Force-Physical Force, within NYPD guidelines**).

While at the rear of the vehicle, PO Valentin, PO Maldonado, PO Hickey, and PO Hanson forcefully handcuffed § 87(2)(b) (**Allegations E, F, G, and H: Force-Physical Force, within NYPD guidelines**). PO Maldonado told officers to place § 87(2)(b) on the “fucking floor” (**Allegation I: Discourtesy-Word, within NYPD guidelines**). An officer allegedly placed their knee on § 87(2)(b) back and throat, which restricted his breathing (**Allegation J: Force-Physical Force, officer unidentified**) (**Allegation K: Force-Restricted Breathing, officer unidentified**). PO Maldonado allegedly kicked § 87(2)(b) in the face (**Allegation L: Force-Physical Force, substantiated**). When lifting § 87(2)(b) off the ground, PO Valentin and PO Maldonado pushed him against his vehicle (**Allegations M and N: Force-Physical Force, substantiated**), and allegedly tried to break § 87(2)(b) arm (**Allegations O and P: Force-Physical Force, unable to determine**).

While placing § 87(2)(b) in handcuffs, PO Hanson pushed § 87(2)(b) and allegedly told her she could not record (**Allegation Q: Force-Physical Force, within NYPD guidelines**) (**Allegation R: Abuse of Authority-Interference with recording device, unfounded**). Sergeant Craig Basler, of the 52nd Precinct, also pushed § 87(2)(b) (**Allegation S: Force-Physical Force, within NYPD guidelines**). While escorting § 87(2)(b) to the police vehicle, Sgt. Basler told § 87(2)(b) to stop resisting and get in the “fucking car” (**Allegation T: Discourtesy-Word, within NYPD guidelines**).

Police Officers Brandon Piehler, Erica Silhan, Daniel Rinaldi, and Beggad Mohamed, all of the 52nd Precinct, grabbed § 87(2)(b) and placed her in handcuffs, and she allegedly received a finger laceration (**Allegations U, V, and W: Force-Physical Force, within NYPD guidelines; Allegation X: Force-Physical Force, miscellaneous – subject resigned**). PO Silhan and PO Rinaldi lifted § 87(2)(b) handcuffs when walking her to the police vehicle (**Allegation Y: Force-Physical Force, miscellaneous – subject resigned**) (**Allegation Z: Force-Physical Force, within NYPD guidelines**). PO Piehler told § 87(2)(b) that they were not “fucking doing this” (**Allegation AA: Discourtesy-Word, substantiated**). PO Silhan and PO Rinaldi pushed § 87(2)(b) into the rear of a police vehicle (**Allegation AB: Force-Physical Force, miscellaneous – subject resigned**) (**Allegation AC: Force-Physical Force, within NYPD guidelines**). PO Rinaldi allegedly “threw” § 87(2)(b) into the police vehicle (**Allegation AD: Force-Physical Force, unfounded**).

Police Officers Ariel Eusebio, Clark Poccia, Krystal Weddell, Debra Cotte, Ronald Urgiles, Luis Sanchezjimenez, Nanakwame Mensah, Albert McBride, Emily Marcus, Edgar Zayas, Tania Mekia, Elvis Hidalgorodriguez, Michael Murphy, Benjamin Fein, Joshua Negron, Lieutenants Ivan Kolovic, Ray Sanchez, and Sergeant Jose Rosa, all of the 52nd Precinct, and Collin Coughlan, of the 52nd Precinct Detective Squad, were also present for this incident.

On November 19, 2023, at approximately 1:47 a.m., at the 52nd precinct stationhouse, PO

Maldonado allegedly blew a kiss at § 87(2)(b) (**Allegation AE: Abuse of Authority-Sexual Misconduct (Sexual Harassment, Gesture), substantiated**).

On November 19, 2023, at approximately 1:54 a.m., at the 52nd Precinct stationhouse, PO Hickey, PO Maldonado, PO Guerrido, PO Hanson, and PO Valentin conducted an inventory search of the vehicle, and PO Hanson did not prepare any property vouchers (**Allegation AF: Abuse of Authority-Vehicle Search, substantiated**). While searching, the officers allegedly damaged several areas of the vehicle and misplaced paperwork (**Allegations AG, AH, AI, AJ, and AK: Abuse of Authority-Property Damaged, unable to determine**). PO Valentin did not activate his BWC during the inventory search (**Allegation AL: Abuse of Authority-Improper use of body-worn camera, substantiated**).

On January 4, 2024, at approximately 1:29 p.m., at 100 Church Street in Manhattan, PO Maldonado provided a false official statement (**Allegation AM: Untruthful Statement-False Official Statement, substantiated**).

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) and § 87(2)(b) were both arrested as a result of this incident (**BR 01, BR 02**).

The investigation received BWC from all of the named officers (**BR 03-BR43**) and stationhouse footage from the 52nd Precinct (**BR 85**).

Findings and Recommendations

Allegation (A) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police, Officer Tyler Hanson hit § 87(2)(b) against a vehicle.

Allegation (B) Abuse of Authority: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Tyler Hanson interfered with § 87(2)(b) use of a recording device.

Allegation (C) Abuse of Authority: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Matthew Guerrido interfered with § 87(2)(b) use of a recording device.

Allegation (D) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Matthew Guerrido used physical force against § 87(2)(b)

It is undisputed that public safety officers stopped § 87(2)(b) who was operating § 87(2)(b) vehicle, for causing excessive noise and for making an improper U-Turn.

§ 87(2)(b) (**BR 44**), who was in the front passenger seat, stated that after § 87(2)(b) willingly exited the vehicle, she also tried to exit to record. As she opened the door, PO Hanson slammed it shut on her knee, resulting in an unspecified injury. When she told PO Hanson that she wanted to record, he said she could not. § 87(2)(b) climbed over the center console and exited the vehicle from the driver's side. As she stepped out, PO Guerrido, who was talking to § 87(2)(b) at the side of the vehicle, approached § 87(2)(b) and pushed her chest once with two hands toward the inside of the vehicle. He then screamed in her face to get back in the car, sit down, and take the key out of the ignition. § 87(2)(b) was unsure if the vehicle was on and if she took the key out. PO Guerrido's chest was on § 87(2)(b) chest, restricting her movement. He did not explicitly tell her not to record, but he blocked the camera with his body.

§ 87(2)(b) (**BR 48**) stated that she was sleeping when she woke up to PO Guerrido by the driver's seat. When § 87(2)(b) stepped out of the vehicle, § 87(2)(b) began recording and asked what § 87(2)(b) did. § 87(2)(b) tried to exit on the passenger side, PO Hanson held the door closed to prevent her from opening it, telling her to remain in the vehicle. § 87(2)(b) did not see the passenger door make contact with § 87(2)(b) PO Guerrido and another officer told § 87(2)(b) that she could not record. PO Guerrido pushed § 87(2)(b) into the vehicle by using his two hands to push her chest. § 87(2)(b) "banged" the back of her head against the top of the

vehicle as a result of the push. § 87(2)(b) did not recall if PO Guerrido tried to grab § 87(2)(b) cellphone.

§ 87(2)(b) (BR 45) and § 87(2)(b) (BR 46) both stated that they did not witness this portion of the incident.

PO Hanson's BWC (BR 05) shows that, at the 2:13 mark, § 87(2)(b) attempts to exit from the front passenger side door and PO Hanson tells her to stay in the vehicle. The door cracks open, but PO Hanson holds his hand at the top of the door, gently closing it. At the 02:48 mark, § 87(2)(b) is recording inside the vehicle. At the 04:00 mark, § 87(2)(b) opens the same door one to two inches, and PO Hanson gently pushes it closed, telling her to stay in the car. § 87(2)(b) leg does not appear to make contact with the door. § 87(2)(b) climbs across the center console and steps out from the driver's side door. § 87(2)(b) and PO Guerrido, who is on the driver's side, have an exchange that is more clearly captured on PO Guerrido's BWC. At the 04:30 mark, § 87(2)(b) tells PO Guerrido to get a "lady" and to not touch her. PO Guerrido reaches for her arm and tells her to step to the back. He places his hand on her right side and pushes her toward the rear. § 87(2)(b) places her arm in the vehicle, causing her left arm to collide with the door frame. A struggle then ensues between the officers and § 87(2)(b) never mentions recording, nor does PO Hanson tell her she cannot record.

PO Guerrido's BWC (BR 04) is generally consistent with that of PO Hanson. At the 04:00 mark, that PO Guerrido begins closing the driver's side door as § 87(2)(b) climbs over the center console. PO Guerrido tells § 87(2)(b) to stay in the vehicle, but she steps out. He tells her to sit down. § 87(2)(b) remains outside, begins recording, says she does not care, and to "take them all in." PO Guerrido repeatedly tells her to take a seat. § 87(2)(b) says, "no" several times. PO Guerrido does not touch § 87(2)(b) cellphone or tell her she cannot record, at any point. At the 04:42 mark, PO Guerrido tells § 87(2)(b) to remove the keys from the ignition and she says no. PO Guerrido tells her to step out of the vehicle and that she is not listening. She remains seated. As PO Guerrido approaches the officers who are grappling with § 87(2)(b) (discussed below), § 87(2)(b) tries to step out of the vehicle. PO Guerrido tells her to stay inside, several times, as she continuously tries to exit and approach § 87(2)(b).

PO Hanson's statement (BR 53) was consistent with the BWC. PO Hanson did not believe § 87(2)(b) was able to bring her leg out of the vehicle and was unaware of the door making contact with § 87(2)(b) leg when closing it. PO Hanson wanted to keep § 87(2)(b) in the vehicle because officers were trying to speak with § 87(2)(b) to de-escalate the situation, but § 87(2)(b) was continuously screaming and not allowing the officers to calm § 87(2)(b) down.

PO Guerrido (BR 50) stated that § 87(2)(b) was yelling after § 87(2)(b) exited the vehicle. PO Hanson told § 87(2)(b) to stay in the vehicle when she tried to open the passenger door. PO Guerrido did not see PO Hanson close the door on § 87(2)(b) leg. § 87(2)(b) moved into the driver's seat, by PO Guerrido. PO Guerrido told § 87(2)(b) to have a seat. § 87(2)(b) refused, cursed, and recorded with her cellphone. PO Guerrido did not tell § 87(2)(b) that she could not record or do anything to obstruct § 87(2)(b) from recording. PO Guerrido never placed his body in front of the camera so § 87(2)(b) could not record. PO Guerrido repeatedly told § 87(2)(b) to sit down, but she refused, so he told her to step to the back of the vehicle. PO Guerrido tried to guide § 87(2)(b) to the back of the vehicle by putting his left hand on her back. § 87(2)(b) pushed PO Guerrido's hand off. PO Guerrido did not use any force with his hand when he tried to guide § 87(2)(b) and denied pushing her. § 87(2)(b) did not move and said, "Don't touch me! Don't touch me! You're not a female officer." PO Guerrido did not touch § 87(2)(b) again. § 87(2)(b) stood and then got back into the car.

TRI# § 87(2)(b) (BR 58) notes that § 87(2)(b) was actively resisting, pushing, and shoving. PO Guerrido is noted as a victim of force and his actions were not noted.

Patrol Guide procedure 221-01 (BR 61) states that when determining if force is reasonable, uniformed members of service should consider the following: "The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the

perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject's violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence."

Patrol Guide procedure 221-02 (BR 62) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control.

§ 87(2)(g)

PO Hanson's BWC shows that the door, which was only opened one to two inches, did not collide with § 87(2)(b) leg or foot. Additionally, PO Hanson's BWC, which comprehensively captures his conversation with § 87(2)(b) prior to her exiting the vehicle, does not capture her stating she was going to record or PO Hanson objecting to it in any way. § 87(2)(g) BWC shows that PO Guerriero did not make any contact with § 87(2)(b) cellphone or indicate in any way that she could not record. As such, it is recommended that **Allegations A, B, and C be unfounded.**

The discussed BWC shows that both PO Hanson and PO Guerriero § 87(2)(g) instructing her to stay in the vehicle, step to the back of the vehicle, and remove the keys from the ignition, none of which she complied with. § 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **within NYPD guidelines.**

Allegation (E) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Roy Valentin used physical force against § 87(2)(b)

Allegation (F) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Ricardo Maldonado used physical force against § 87(2)(b)

Allegation (G) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Kevin Hickey used physical force against § 87(2)(b)

Allegation (H) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Tyler Hanson used physical force against § 87(2)(b)

Allegation (I) Discourtesy: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Ricardo Maldonado spoke discourteously to § 87(2)(b)

Allegation (J) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, an officer used a chokehold against § 87(2)(b)

Allegation (K) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, an officer restricted § 87(2)(b) breathing.

Allegation (L) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Ricardo Maldonado used physical force against § 87(2)(b)

Allegation (M) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Ricardo Maldonado used physical force against § 87(2)(b)

Allegation (N) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Roy Valentin used physical force against § 87(2)(b)

Allegation (O) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Ricardo Maldonado used physical force against § 87(2)(b)

Allegation (P) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the

Bronx, Police Officer Roy Valentin used physical force against § 87(2)(b)

PO Hickey's BWC (**BR 06**) shows, beginning at the 01:07 mark, PO Hickey approaching § 87(2)(b) and asking for his license and registration. § 87(2)(b) refuses, says he is ready to go to jail, and argues with PO Hickey about the validity of the vehicle stop. At the 03:58 mark, PO Guerrido tells § 87(2)(b) to step out of the vehicle, which he does voluntarily. At the 04:33 mark, § 87(2)(b) tells PO Guerrido to "get a lady" and not touch her. PO Guerrido tells her to step to the back, at which point § 87(2)(b) who is by the trunk, quickly walks toward PO Guerrido. PO Hickey extends his left arm to prevent § 87(2)(b) from moving forward. § 87(2)(b) says to "get the fuck off of [him]." PO Hickey and PO Valentin grab each of § 87(2)(b) wrists, which § 87(2)(b) keeps stiffly in front of his waist. PO Hanson assists PO Valentin in pulling § 87(2)(b) left arm toward his back. The officers tell § 87(2)(b) to give them his hands and he refuses.

At the 04:55 mark, PO Maldonado tells the officers to "put him on the fucking floor." An officer accuses § 87(2)(b) of punching him, which is not captured. PO Maldonado grabs and lifts § 87(2)(b) legs and brings him to the ground (captured more clearly in PO Guerrido's BWC at the 05:00 mark). § 87(2)(b) lands on his back. The officers tell § 87(2)(b) to stop resisting. At the 05:17 mark, PO Maldonado places his knee on an unclear part of § 87(2)(b) upper body near his left shoulder as § 87(2)(b) repeats to "get [him] a lawsuit." PO Hickey holds onto § 87(2)(b) right arm and PO Maldonado holds his left. The officers flip § 87(2)(b) body toward his side by pulling his arms. PO Hickey's camera is obstructed until the 06:02 mark. At the 05:47 mark, § 87(2)(b) says, "why you putting your knee in my throat," with the final word cutting off. At the 06:00 mark, § 87(2)(b) says that "he" is "kneeing" him in his face. At the 06:20 mark, the officers secure his handcuffs. At the 07:19 mark, § 87(2)(b) screams "my arm" and "my hand," accusing the officers of trying to break his arm, while PO Valentin and PO Maldonado are holding onto him. The contact made with his arm is unclear. (This unclear contact is also shown in PO Hanson's BWC at the 07:14 mark).

PO Hanson's BWC (**BR 05**) shows, at the 05:10 mark, that once § 87(2)(b) is on the ground, PO Hanson and PO Valentin hold § 87(2)(b) legs in place with their hands. At the 06:25 mark, PO Valentin and PO Maldonado lift § 87(2)(b) off the ground and push him into the rear of his vehicle. This is also captured in PO Guerrido's BWC (**BR 04**) beginning at the 6:20 mark.

Both PO Valentin (**BR 07**) and PO Maldonado's BWC (**BR 03**) fall off when the struggle with § 87(2)(b) begins and do not visually capture the force used on the ground. However, when PO Maldonado picks up PO Valentin's BWC, at the 05:40 mark, § 87(2)(b) looks at PO Maldonado and accuses PO Maldonado of kicking him in the face. PO Piehler's BWC (**BR 10**) shows, at the 14:10 mark, that while in front of the stationhouse desk, § 87(2)(b) is speaking with PO Maldonado and accuses him of kicking him in the face previously. PO Hanson's BWC (**BR 23**) captures, at the 1:40 mark, that while in the holding cell area, § 87(2)(b) accuses PO Maldonado of kicking him in the face previously, again.

§ 87(2)(b) statement (**BR 45**) is generally consistent with the BWC regarding how the officers initially made contact, his resistance, and an officer stating to place him on the ground. § 87(2)(b) added that he was moving his body away to escape the officers' grasps. While struggling with § 87(2)(b) the officers "banged" his body against his vehicle. Two officers grabbed his legs, lifted them, and slammed him on the ground, causing pain in his lower back. § 87(2)(b) landed on his back, and the officers continued pulling his arms toward his back. § 87(2)(b) tensed and moved to his right side while on the ground, and an officer held his knee to the side of § 87(2)(b) neck. As § 87(2)(b) continued moving, the officers positioned him onto his stomach and repeatedly told him to stop resisting. One officer held his knee behind § 87(2)(b) knees; another officer held his knee on the right side of § 87(2)(b) back; a third officer had his knee behind § 87(2)(b) neck. The knee on § 87(2)(b) back restricted his breathing. PO Maldonado kicked § 87(2)(b) once, on the right side of his head, by his temple, while he was faced down. The kick caused a bruise that § 87(2)(b) did not take a photo of. The officers lifted § 87(2)(b) off the ground by his arms, pushed him chest-first into his vehicle, and secured his handcuffs.

§ 87(2)(b) (BR 44) stated that the officers tackled § 87(2)(b) after he turned around to look when PO Guerrido pushed her. The officers slammed § 87(2)(b) onto the ground, kicked him, and placed their knees on his neck while § 87(2)(b) was faced down. § 87(2)(b) did not know how long the officers had had their knees on his neck. One of the officers kicked § 87(2)(b) head. She could not see the rest of the interaction with § 87(2)(b) as PO Guerrido restricted her movement to the driver's seat.

§ 87(2)(b) statement (BR 48) was generally consistent with those of § 87(2)(b) and § 87(2)(b).

§ 87(2)(b) (BR 46) stated that when § 87(2)(b) exited the vehicle, at least three officers placed him in handcuffs. After he was in handcuffs, the officers pushed § 87(2)(b) to the ground. One officer placed their knee in the middle of § 87(2)(b) back; another officer placed their knee behind § 87(2)(b) leg; and a third officer placed their knee on § 87(2)(b) neck. She did not remember how he was positioned at the time.

§ 87(2)(b) (BR 47) stated that when § 87(2)(b) exited the vehicle, two to three officers placed him in handcuffs. § 87(2)(b) resisted by moving his body back and forth, while cursing and yelling. § 87(2)(b) did not see § 87(2)(b) on the ground, nor did he see any officer with their knee on § 87(2)(b) neck or back.

PO Hanson (BR 53) stated that after the interaction between § 87(2)(b) and PO Guerrido, § 87(2)(b) moved toward PO Guerrido. PO Hanson walked around the vehicle to assist the officers in placing § 87(2)(b) in handcuffs. PO Hanson attempted to pull § 87(2)(b) arm behind his back and issued him commands to do so. § 87(2)(b) actively resisted by tensing up, bracing, and moving his body side to side. After some time, the officers brought § 87(2)(b) to the ground, but PO Hanson did not see how it happened. While on the ground, PO Hanson held § 87(2)(b) legs in place and called for additional units. PO Hanson stepped away from § 87(2)(b) when he realized the other occupants of the vehicle were approaching the struggle. PO Hanson did not observe any officer kick § 87(2)(b) in the face or place their knee on § 87(2)(b) throat or neck. He did not observe any indication that § 87(2)(b) could not breathe. Other officers secured § 87(2)(b) handcuffs and lifted him off the ground. PO Hanson did not remember if § 87(2)(b) made contact with his vehicle or how he was taken to the police vehicle.

PO Hickey's statement (BR 49) was generally consistent with that of PO Hanson, except for the following. As soon as § 87(2)(b) lunged toward PO Guerrido, he was under arrest. PO Hickey grabbed § 87(2)(b) hand to stop him. § 87(2)(b) dug his nails into both PO Hickey's wrists and his left thumb, which caused an injury that he captured on his BWC (at the 21:00 mark). PO Valentin and PO Maldonado assisted, attempting to bring § 87(2)(b) other wrist behind his back. § 87(2)(b) yelled, kicked, and moved his body around. § 87(2)(b) kicked PO Hickey in his right knee, possibly more than once.

While on the ground, PO Hickey maintained a hold on § 87(2)(b) arm for the entire handcuffing process. He did not believe any officers used their knees to make contact with § 87(2)(b). He did not recall if § 87(2)(b) made any statements about a knee being on his back, chest, or neck. PO Hickey did not kick § 87(2)(b) in the face or make contact with § 87(2)(b) neck. PO Hickey did not see any officer make contact with § 87(2)(b) neck or throat.

PO Hickey did not recall if § 87(2)(b) resisted after being placed in handcuffs. He believed there was some difficulty taking § 87(2)(b) to the police vehicle, but he did not know what caused it, as he was not involved.

PO Valentin's statement (BR 51) was generally consistent with PO Hanson and PO Hickey's, except for the following. When § 87(2)(b) initially lunged toward PO Guerrido, which indicated to PO Valentin that he was trying to escape, PO Valentin grabbed one of § 87(2)(b) arms. PO Valentin and PO Maldonado grabbed § 87(2)(b) leg, lifting it up to try and bring him to the ground to have more control over him. § 87(2)(b) landed on the ground gently, but PO Valentin did not recall his positioning.

PO Valentin did not recall § 87(2)(b) complaining of an officer using his knee to make

contact with him. PO Valentin used his knee to hold down the lower part of § 87(2)(b) legs. PO Valentin did not recall how § 87(2)(b) was positioned at that point. PO Valentin did not recall any other officer using their knees to make contact with § 87(2)(b). PO Valentin did not recall seeing an officer kicking § 87(2)(b) in the face, specifically PO Maldonado, and denied doing so himself.

When PO Valentin lifted § 87(2)(b) off the ground, he placed him against his vehicle so he would not escape. PO Valentin denied pushing § 87(2)(b) into his vehicle, even after watching his BWC. When § 87(2)(b) complained of officers breaking his arms, PO Valentin was the only officer holding § 87(2)(b). He was not applying pressure. He denied doing anything that could have caused pain to his arm or seeing any other officer do so. While walking § 87(2)(b) to the police vehicle, PO Valentin had his hand under § 87(2)(b) handcuffs and held onto his shoulder. PO Valentin used that grip due to § 87(2)(b) previous resistance and to maintain control. PO Valentin did not recall how § 87(2)(b) was placed in the police vehicle.

PO Maldonado's statement (**BR 54**) was generally consistent with the other officers' statements, except for the following. PO Maldonado told the officers to put § 87(2)(b) on the "fucking" ground to gain more control. He used profanity to emphasize his statement and noted that the scene had become chaotic at that point, with all of the passengers exiting the vehicle. After watching PO Guerrido's BWC, PO Maldonado recalled that he lifted § 87(2)(b) legs to bring him to the ground. Once on the ground, PO Maldonado grabbed § 87(2)(b) arm and moved him into a faced-down position, where the officers were able to bring his arms behind his back. PO Maldonado did not recall § 87(2)(b) doing anything to cause harm to the officers, like kicking.

PO Maldonado remained by § 87(2)(b) head/shoulder area the entire handcuffing process. PO Maldonado did not make contact with § 87(2)(b) head or neck during this incident. He did not recall applying any pressure to § 87(2)(b) throat or windpipe. PO Maldonado did not use his knee to restrain § 87(2)(b) at any point during the handcuffing process. PO Maldonado did not hear § 87(2)(b) stating that an officer had their knee to his throat. PO Maldonado denied putting his knee to § 87(2)(b) throat. PO Maldonado heard § 87(2)(b) state that he was kicked in the face, but he denied doing so.

PO Maldonado and an assisting officer pressed § 87(2)(b) body against his vehicle to prohibit him from fleeing, given that he had previously resisted. When walking him to the RMP, PO Maldonado had his arm underneath § 87(2)(b) arms and held onto his shoulder, as this grip allowed him to have more control over § 87(2)(b). PO Maldonado helped § 87(2)(b) sit down in the RMP, after which § 87(2)(b) did not want to place his legs in the vehicle. PO Maldonado lifted § 87(2)(b) legs and placed them in the car. PO Maldonado did not recall pushing § 87(2)(b) into the vehicle.

Neither PO Piehler (**BR 56**) nor PO Rinaldi (**BR 55**), who arrived on scene while § 87(2)(b) was on the ground, recalled seeing any officer using excessive force, including kicking § 87(2)(b) in the face.

TRI #§ 87(2)(b) (**BR 60**) notes that PO Hickey, PO Hanson, PO Valentin, and PO Maldonado were involved in an incident during which § 87(2)(b) used force against MOS. The force used by MOS is noted as forcible takedown, wrestling/grappling, foot strike, and hand strike. PO Maldonado's TRI, ending in § 87(2)(b) (**BR 59**), is the only TRI that notes that force used by MOS includes a hand strike and foot strike.

Having viewed his TRI, PO Maldonado (**BR 57**) explained that he was instructed by supervisors at his precinct to enter everything a civilian claimed to have happened to them, regardless of whether or not it actually occurred, in the "Actions taken by reporting MOS" section of a TRI. PO Maldonado denied using a foot strike or hand strike.

Patrol Guide procedure 221-01 (**BR 61**) states that when determining if force is reasonable, uniformed members of service should consider the following: "The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight,

Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject's violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence." Members are prohibited from using a chokehold, which is defined as "any pressure to the throat or windpipe [that] may prevent or hinder breathing or reduce intake of air.

Patrol Guide procedure 221-02 (**BR 62**) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control.

Patrol Guide procedure 200-02 (**BR 64**) notes that the NYPD's mission is to, in partnership with the community, value human life, respect the dignity of each individual, and render our services with courtesy and civility, while also maintaining a higher standard of integrity than is generally expected of others.

DAO-DCT 2015-15012 (BR 65) found that officers are prohibited from using discourteous language, except when in a highly dangerous or stressful situation. Officers shall not use discourteous language that serves no legitimate purpose other than to belittle.

The BWC shows that § 87(2)(b) lunged toward PO Guerrido and that he resisted the officers' attempts to place him in handcuffs. § 87(2)(g)

it is recommended that **Allegations E, F, G, and H** be closed as **within NYPD guidelines**.

The BWC shows that PO Maldonado told the officers to put § 87(2)(b) on the "fucking" floor, which later allowed them to place him in handcuffs. Just prior to PO Maldonado using profanity, § 87(2)(b) had escalated a basic vehicle stop, lunged toward an officer, and actively resisted the officers' attempts to place him in handcuffs. § 87(2)(g)

is recommended that **Allegation I** be closed as **within NYPD guidelines**.

The BWC captures § 87(2)(b) stating that an officer placed their knee on his throat, which is consistent with his statement, where he added that an officer also placed their knee on his back and restricted his breathing. However, the BWC is not comprehensive from any officer's perspective and does not show an officer with their knee on § 87(2)(b) throat or his back at any point. § 87(2)(g)

it is recommended that **Allegations J and K** be closed as **officer unidentified**.

PO Valentin's BWC, which is not comprehensive, captures § 87(2)(b) looking at PO Maldonado and accusing him of kicking him in the face but it does not capture any such corresponding action, nor does any other BWC. However, the discussed BWC does show that § 87(2)(b) accused PO Maldonado of kicking him in the face at least three times, all on different occasions. § 87(2)(g)

§ 87(2)(g)

Furthermore, given § 87(2)(b) adamant that PO Maldonado kicked him in the face, PO Maldonado's notation of a foot strike in the TRI, § 87(2)(g)

it is recommended that **Allegation L** be **substantiated**.

PO Guerrido's and PO Hanson's BWC show that when PO Maldonado and PO Valentin lifted § 87(2)(b) off the ground, he was in handcuffs and not physically resisting. § 87(2)(g)

, it is recommended that **Allegations M** and **N** be **substantiated**.

While pinned against his vehicle, § 87(2)(b) made statements about PO Maldonado and PO Valentin trying to break his arm. However, BWC of this portion of the incident was not comprehensive § 87(2)(g)

it is recommended that **Allegations O** and **P** be closed as **unable to determine**.

Allegation (Q) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Tyler Hanson used physical force against § 87(2)(b)

Allegation (R) Abuse of Authority: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Tyler Hanson interfered with § 87(2)(b) use of a recording device.

Allegation (S) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Sergeant Craig Basler used physical force against § 87(2)(b)

§ 87(2)(b) (BR 48) stated that when she stepped out of the vehicle and began recording, PO Hanson screamed in her face that she could not record. He did not touch her phone. PO Hanson pushed § 87(2)(b) in the chest and toward the sidewalk, using one hand with his palm out. § 87(2)(b) stumbled backwards slightly but did not fall. § 87(2)(b) did not allege being pushed again.

§ 87(2)(b) (BR 45) and § 87(2)(b) (BR 44) stated that § 87(2)(b) was recording as she approached § 87(2)(b) and an officer told her to step back multiple times. The officer pushed her once, which caused her to stumble backwards.

§ 87(2)(b) (BR 46) did not mention § 87(2)(b) recording or any officer pushing her.

§ 87(2)(b) (BR 47) stated that officers did not ever make physical contact with § 87(2)(b)

PO Hanson's BWC (BR 05) shows, at the 5:25 mark, that § 87(2)(b) approaches within a few feet of the officers' struggle with § 87(2)(b) PO Hanson pushes § 87(2)(b) backwards, slightly, with his right hand, and tells her to back up. § 87(2)(b) screams, "Don't touch me." PO Hanson stands up, with his arms extended, and tells § 87(2)(b) and § 87(2)(b) to step back. At the 05:36 mark, § 87(2)(b) walks into the street. PO Hanson tells her to get out of the street. At the 05:48 mark, § 87(2)(b) screams, "Don't touch my dad," and approaches the struggle again. Though it is unclear how, § 87(2)(b) stumbles backward, as PO Hanson tells her to stop and to back up. § 87(2)(b) says if PO Hanson touches her again then she is calling the police. PO Hanson does not tell § 87(2)(b) that she cannot record.

PO Guerrido's BWC (BR 04) shows, at the 05:20 mark, that just after PO Hanson initially pushes § 87(2)(b) PO Hanson nudges her backwards again. § 87(2)(b) brings her arm

downward, appearing to strike PO Hanson's arm. At the 05:45 mark, PO Hanson pushes § 87(2)(b) away from the struggle with § 87(2)(b) again. § 87(2)(b) appears to strike his arm. PO Hanson is not captured making contact with § 87(2)(b) cell phone.

Sgt. Basler's BWC (**BR 08**) shows, at the 01:36 mark, that as Sgt. Basler approaches the scene, § 87(2)(b) is standing on the street, a couple of feet away from § 87(2)(b) screaming. § 87(2)(b) is on the ground. Sgt. Basler tells her to back up. § 87(2)(b) says not to tell her to back up because that is her father. Sgt. Basler uses both arms to push § 87(2)(b) backwards by her shoulders and says to "back up," multiple times.

PO Hanson (**BR 53**) stated that when grappling with § 87(2)(b) on the ground, he heard someone screaming on his right side. PO Hanson extended his right arm out on his right side to keep § 87(2)(b) from getting closer. PO Hanson denied that the action was a push. § 87(2)(b) slapped PO Hanson's hand away. After a couple of seconds, § 87(2)(b) approached again. PO Hanson stood up and held his arms out horizontally, telling § 87(2)(b) to stay back. Someone, either § 87(2)(b) or § 87(2)(b) slapped PO Hanson's hand away, again. PO Hanson saw that § 87(2)(b) had a phone in her hand, but he was not sure if she was recording. PO Hanson did not tell § 87(2)(b) that she could not record. He did not do anything to prevent her from recording nor did he make contact with her phone.

The investigation was unable to obtain a statement from Sgt. Basler, as he is on terminal leave (**BR 67**). Additionally, his statement would not have affected the disposition of this allegation.

There are no Threat, Resistance, or Injury Reports reflecting the force used against § 87(2)(b).

Patrol Guide procedure 221-01 (**BR 61**) states that when determining if force is reasonable, uniformed members of service should consider the following: "The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject's violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence."

Patrol Guide procedure 221-02 (**BR 62**) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control.

PO Hanson's BWC captures § 87(2)(b) repeatedly approaching § 87(2)(b) despite PO Hanson telling her to back up. She also appeared to strike PO Hanson's arm when he stretched it out to keep her away, which is consistent with his statement. PO Hanson's and PO Guerrido's BWC capture PO Hanson pushing § 87(2)(b) at least twice. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation Q** be closed as **within NYPD guidelines**. The comprehensive audio in PO Hanson's BWC does not capture him telling § 87(2)(b) that she could not record at any point. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation R** be **unfounded**.

Similar to the encounter between § 87(2)(b) and PO Hanson, Sgt. Basler pushed § 87(2)(b) away from the officers' apprehension of § 87(2)(b) after he told her to step back, and she refused. § 87(2)(g)

it is recommended that Allegation S be closed as within NYPD guidelines.

Allegation (T) Discourtesy: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Sergeant Craig Basler spoke discourteously to § 87(2)(b)

This allegation derives from BWC.

Sgt. Basler's BWC (BR 08) shows, at the 03:00 mark, that PO Maldonado and PO Valentin escort § 87(2)(b) to the patrol vehicle. § 87(2)(b) family members can be heard screaming in the background. § 87(2)(b) is bent forward at the waist, remains in place, and asks what the officers want him to do. Sgt. Basler tells him that he wants him to "stop resisting and get in the fucking car." Sgt. Basler then says to "get in the fucking car."

The investigation was unable to obtain a statement from Sgt. Basler, as he is on terminal leave (BR 67). Additionally, his statement would not have affected the disposition of this allegation.

Patrol Guide procedure 200-02 (BR 64) notes that the NYPD's mission is to, in partnership with the community, value human life, respect the dignity of each individual, and render our services with courtesy and civility, while also maintaining a higher standard of integrity than is generally expected of others.

DAO-DCT 2015-15012 (BR 65) found that officers are prohibited from using discourteous language, except when in a highly dangerous or stressful situation. Officers shall not use discourteous language that serves no legitimate purpose other than to belittle.

It was undisputed that § 87(2)(b) was not complying with orders to walk to the police vehicle and that members of his family were in the area screaming. Although § 87(2)(b) was in handcuffs and surrounded by officers, he was in the street and not yet secured in a police vehicle.

it is recommended that Allegation T be closed as within NYPD guidelines.

Allegation (U) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Brandon Piehler used physical force against § 87(2)(b)

Allegation (V) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Beggad Mohamed used physical force against § 87(2)(b)

Allegation (W) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Daniel Rinaldi used physical force against § 87(2)(b)

Allegation (X) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Erica Silhan used physical force against § 87(2)(b)

Allegation (Y) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Erica Silhan used physical force against § 87(2)(b)

Allegation (Z) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Daniel Rinaldi used physical force against § 87(2)(b)

Allegation (AA) Discourtesy: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Daniel Rinaldi spoke discourteously to § 87(2)(b)

Allegation (AB) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Erica Silhan hit § 87(2)(b) against a vehicle.

Allegation (AC) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Daniel Rinaldi hit § 87(2)(b) against a vehicle.

Allegation (AD) Force: On November 19, 2022, at 1:25 a.m., at Briggs Ave. & E 196th St. in the Bronx, Police Officer Daniel Rinaldi used physical force against § 87(2)(b)

§ 87(2)(b) (BR 44) stated that some officers on scene “snatched” her and placed her under arrest. She did not know what caused it, but something slit her ring finger and caused her to bleed. (She went to § 87(2)(b) Emergency Room after she was released but did not provide HIPAA forms). When the officers escorted § 87(2)(b) to the police vehicle, they lifted her arms in the air behind her, causing her body to move downwards. The officers interpreted her movement as resistance and became more aggressive. The officers slammed § 87(2)(b) chest-first against the police vehicle. An officer “threw” § 87(2)(b) into the rear of the police vehicle by shoving her inside. § 87(2)(b) did not provide any photos of her alleged injuries.

§ 87(2)(b) (BR 45), § 87(2)(b) (BR 48), and § 87(2)(b) (BR 47) witnessed officers handcuff § 87(2)(b) and escort her to the police vehicle but made no mention of any force. § 87(2)(b) (BR 46) did not witness this.

PO Piehler’s BWC (BR 10) shows that, at the 01:00 mark, as he approaches the scene, he grabs § 87(2)(b) arm while she is holding onto her young child. § 87(2)(b) moves her arm, says not to touch her, and stiffens her arms. PO Silhan and PO Rinaldi assist in bringing § 87(2)(b) arms behind her back. PO Mohamed secures the handcuffs on her wrists. At the 01:40 mark, PO Rinaldi and PO Silhan escort § 87(2)(b) to the police vehicle. § 87(2)(b) pulls her left shoulder forward, followed by her right shoulder, causing PO Silhan and PO Rinaldi to stumble forward. The officers keep a firm grasp on her and continue walking. At the 01:55 mark, PO Rinaldi and PO Silhan place § 87(2)(b) against the front of the police vehicle and search her. At the 2:00 mark, PO Piehler struggles to remove § 87(2)(b) cellphone, as she maintains a firm grasp on it. He tells her to let go of her phone multiple times, and she refuses to let it go. At the 02:20 mark, PO Piehler pulls the phone from her hands. At the 11:21 mark, after arriving at the stationhouse, § 87(2)(b) complains that her finger feels like it is jammed.

PO Rinaldi’s BWC (BR 33), which captures the same portion of the incident, captures him saying “we’re not fucking doing this,” at the 01:20 mark. At the 03:09 mark, PO Rinaldi helps § 87(2)(b) into the rear passenger seat of a police vehicle and § 87(2)(b) willingly sits inside.

PO Piehler (BR 56) stated that when he initially approached § 87(2)(b) to place her under arrest, § 87(2)(b) stiffened her arms and clenched her fists. PO Piehler told her to place her hands behind her back, but she failed to comply. PO Piehler grabbed § 87(2)(b) right wrist, while PO Silhan grabbed her left. § 87(2)(b) continued stiffening her arms, but the officers brought her arms behind her back and secured her handcuffs. PO Piehler denied doing or seeing anything that could have caused a laceration on § 87(2)(b) finger. He did not see any injuries to her fingers.

When escorting § 87(2)(b) to the police vehicle, she was moving her body back and forth, screaming, cursing, and generally acting “erratic.” The officers continued guiding her to the vehicle. PO Piehler did not hear any officer saying, “we’re not fucking doing this.”

PO Rinaldi (BR 55) stated that when he approached the scene, PO Piehler, PO Mohamad, and PO Silhan were already placing § 87(2)(b) in handcuffs. She was resisting by tensing her arms and holding them in front of her. The officers told § 87(2)(b) to place her arms behind her back and she did not comply. PO Rinaldi assisted in securing her handcuffs. PO Rinaldi was unaware of any contact that could have caused a laceration on § 87(2)(b) finger. He did not recall seeing any kind of laceration on her finger, though § 87(2)(b) mentioned that her finger felt jammed at one point. § 87(2)(b) did not elaborate on what jammed meant.

When escorting § 87(2)(b) to the police vehicle, she was pulling and pushing the officers. PO Rinaldi held § 87(2)(b) in place to overcome her resistance. PO Rinaldi did not remember making any statements, including “we’re not fucking doing this.” After watching his BWC, twice, PO Rinaldi stated that he could not hear the audio clearly. He heard himself saying, “we’re not doing this,” absent the word, “fucking.”

When arriving at the police vehicle, PO Rinaldi held § 87(2)(b) by the vehicle. Though he did not recall if she was against it, he noted that pushing her into the vehicle would have been appropriate given her pushing and pulling on the way to the vehicle. § 87(2)(b) held onto her cellphone and would not let go. The officers eventually removed it from her hands, given that it was

a safety issue.

The investigation was unable to interview PO Silhan because she resigned on March 29, 2023 (**BR 68**).

The investigation did not interview PO Mohamad because his involvement was minimal and would not have affected the disposition of these allegations.

There were no Threat, Resistance, or Injury Reports documenting PO Silhan, PO Rinaldi, PO Piehler, or PO Mohamad's use of force against § 87(2)(b).

Patrol Guide procedure 221-01 (**BR 61**) states that when determining if force is reasonable, uniformed members of service should consider the following: "The nature and severity of the crime/circumstances, Actions taken by the subject, Duration of the action, Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, Whether the subject is actively resisting custody, Whether the subject is attempting to evade arrest by flight, Number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, Subject's violent history, if known, Presence of hostile crowd or agitators, Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence."

Patrol Guide procedure 221-02 (**BR 62**) states that when a member of the service must gain compliance, control, or custody of an uncooperative subject, the member should comply with P.G. 221-01 and do the following: Take necessary action to protect life and personal safety of all persons present, including subjects being placed into custody and utilize de-escalation techniques when appropriate and consistent with personal safety, which may reduce or eliminate the need to use force, among other additional steps. Officers shall apply no more than the reasonable force necessary to gain control.

Patrol Guide procedure 200-02 (**BR 64**) notes that the NYPD's mission is to, in partnership with the community, value human life, respect the dignity of each individual, and render our services with courtesy and civility, while also maintaining a higher standard of integrity than is generally expected of others.

DAO-DCT 2015-15012 (BR 65) found that officers are prohibited from using discourteous language, except when in a highly dangerous or stressful situation. Officers shall not use discourteous language that serves no legitimate purpose other than to belittle.

The discussed BWC captures § 87(2)(b) pulling away from PO Piehler, stiffening her arms, and refusing to comply when the officers handcuffed her. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations U, V, and W** be closed as **within NYPD guidelines**.

The discussed BWC also captures § 87(2)(b) pushing and pulling away from the officers as they escort her to the RMP. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation Z** be closed as **within NYPD guidelines**.

Although § 87(2)(b) was noncompliant, she was outnumbered by officers and in handcuffs, § 87(2)(g)

§ 87(2)(b) PO Rinaldi's lack of recollection of using profanity while escorting § 87(2)(b) the BWC captures him making the statement § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation AA** be **substantiated**.

PO Piehler's BWC shows that when PO Rinaldi and PO Silhan brought § 87(2)(b) to the patrol vehicle, they placed her against the vehicle to search her, absent any pushing or "slamming." § 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations AB** and **AC** be closed as **within NYPD guidelines**.

The comprehensive BWC shows that the officers placed § 87(2)(b) into the vehicle absent any force. Therefore, it is recommended that **Allegation AD** be **unfounded**.

§ 87(2)(g) it is recommended that **Allegations X, Y, and AB** be closed as **miscellaneous – subject resigned**.

Allegation (AE) Abuse of Authority: On November 19, 2022, at 1:47 a.m., at the 52nd Precinct Stationhouse, Police Officer Ricardo Maldonado made a sexually suggestive gesture towards § 87(2)(b)

§ 87(2)(b) (**BR 45**) stated that while at the stationhouse, he accused PO Maldonado again of kicking him at the scene. PO Maldonado laughed, smirked, and blew a kiss at § 87(2)(b) by kissing his hand and blowing it toward § 87(2)(b).

§ 87(2)(b) (**BR 44**), the only other civilian present with § 87(2)(b) at the stationhouse, did not mention PO Maldonado or any officer blowing a kiss at § 87(2)(b).

PO Hanson's BWC (**BR 23**) shows that PO Maldonado is standing by the door frame, leading to the cell area, while other officers assist in removing § 87(2)(b) and § 87(2)(b) property. At the 01:40 mark, § 87(2)(b) accuses PO Maldonado of having kicked him in the face. When PO Maldonado asks, "who," § 87(2)(b) reiterates that he is speaking to him. § 87(2)(b) then accuses PO Maldonado of having blown a kiss at him at that moment. The video does not capture kissing or blowing sounds. PO Maldonado asks if he is seeing things and if he needs an ambulance.

The stationhouse surveillance video of the holding cell area (**BR 81**) captures PO Maldonado placing his hand on his mouth, at the 18:16 mark, puckering his lips to kiss his hand, and then moving his hand in the direction the space in front of him, with his lips still puckered.

PO Mejia's BWC (**BR 24**), beginning at the 3:43 mark, also captures the audio portion of this incident.

PO Guerrido (**BR 50**), PO Valentin (**BR 51**), and PO Hanson (**BR 53**) all denied seeing PO Maldonado blowing a kiss at § 87(2)(b).

PO Maldonado (**BR 54**) denied blowing a kiss at § 87(2)(b) though he heard § 87(2)(b) accuse him of doing so. When presented with the surveillance footage, PO Maldonado stated (**BR 82**) that he observed himself waving at PO Guerrido, not blowing a kiss at § 87(2)(b). He did not see his lips puckered and denied blowing a kiss at all, though he acknowledged that his action could have been perceived as such.

Patrol Guide procedure 200-02 (**BR 83**) notes that officers must respect the dignity of each individual and engage with them courteously and civilly, as they are held to a higher standard of integrity than is generally expected of others.

NYPD Administrative Guide 332-01 (**BR 84**) notes that sexual harassment includes, but is not limited to, sexually suggestive remarks and gesturing.

The surveillance footage discussed captures PO Maldonado conducting an action that is objectively perceived as blowing a kiss. The discussed BWC shows § 87(2)(b) was in the process of accusing PO Maldonado of kicking him in the face, which he did several times before, as discussed in the other allegations. PO Maldonado was facing the holding cells, where § 87(2)(b) was recently lodged, and interacting with him, as he asked "who?" when § 87(2)(b) stated that someone kicked him in the face. § 87(2)(g)

Therefore, it is recommended that **Allegation AE** be **substantiated**.

Allegation (AF) Abuse of Authority: On November 19, 2022, 1:54 a.m., at 3016 Webster Avenue in the Bronx, Police Officer Tyler Hanson searched § 87(2)(b) vehicle.

Allegation (AG) Abuse of Authority: On November 19, 2022, at 1:54 a.m., at 3016 Webster Avenue in the Bronx, Police Officer Matthew Guerrido damaged § 87(2)(b) property.

Allegation (AH) Abuse of Authority: On November 19, 2022, at 1:54 a.m., at the 52nd Precinct Stationhouse, Police Officer Kevin Hickey damaged § 87(2)(b) property.

Allegation (AI) Abuse of Authority: On November 19, 2022, at 1:54 a.m., at the 52nd Precinct Stationhouse, Police Officer Ricardo Maldonado damaged § 87(2)(b) property.

Allegation (AJ) Abuse of Authority: On November 19, 2022, at 1:54 a.m., at the 52nd Precinct Stationhouse, Police Officer Tyler Hanson damaged § 87(2)(b) property.

Allegation (AK) Abuse of Authority: On November 19, 2022, at 1:54 a.m., at the 52nd Precinct Stationhouse, Police Officer Roy Valentin damaged § 87(2)(b) property.

Allegation (AL) Abuse of Authority: On November 19, 2022, at 1:54 a.m., at the 52nd Precinct Stationhouse, Police Officer Roy Valentin improperly used his body-worn camera.

§ 87(2)(b) (BR 44) stated that when she retrieved her car, she could not open the gas compartment and had to pry it open, after which it would not close. The tape player was also damaged. She also noted that officers removed items from her glove compartment and put them in a garbage bag. Many of those items, including a flashlight, were broken. There were also many items missing from her car, including the registration, tickets, and other papers she could not specify.

The entire inventory search is captured on PO Guerrido's BWC (BR 04) from the 31:20 mark to the end of the video. PO Hickey's BWC (BR 21) shows, at the 03:49 mark, that he removes paperwork and other items from the glove compartment (confirmed in PO Hansen's BWC (BR 22) at the 04:41 mark). The video shows him placing all of the items into a plastic bag. PO Hickey's (BR 21), PO Maldonado's (BR 20), PO Guerrido's (BR 04), and PO Hanson's (BR 19, 22) BWC do not capture anyone handling the tape player or the gas flap of the vehicle.

PO Hanson's BWC (BR 17) shows, at the 01:00 mark, that PO Hanson asks if § 87(2)(b) would like her property and her vehicle to be released to her family so they would not have to voucher it. After discussing why she was stopped and arrested, § 87(2)(b) tells PO Guerrido and PO Hanson that she wants everything to be released to her family, at the 05:20 mark. At the 07:32 mark, PO Hanson hands the property retrieved from the vehicle to § 87(2)(b) and § 87(2)(b) family.

The investigation did not obtain any BWC from PO Valentin capturing the inventory search.

PO Hanson (BR 53), PO Maldonado (BR 54), PO Valentin (BR 52), PO Guerrido (BR 50), and PO Hickey (BR 49) all consistently denied doing or observing anything that could have caused damage to the gas flap of the vehicle, or any items, like flashlights. They all denied being aware of any paperwork going missing or anything that caused the tape player to continue rolling.

PO Valentin (BR 52) stated that he did not activate his BWC during the inventory search because he did not enter the vehicle and was just holding a bag to help his team.

The only property vouchers prepared for this incident (BR 70)—§ 87(2)(b) and § 87(2)(b)—document shoelaces from § 87(2)(b) and § 87(2)(b) which were vouchered as general property for safe keeping. No other property was vouchered.

Patrol Guide procedure 218-13 (BR 71) outlines protocol on Inventory Searches, noting that the purpose of conducting an inventory search is "to protect property, ensure against unwarranted claims of theft, and protect uniformed members of the service and others against dangerous instrumentalities." Officers are required to remove all valuables from the vehicle and invoice the property with property vouchers.

People v. Johnson 1 N.Y.3d 252 (BR 72) notes that "An inventory search is exactly what its name suggests, a search designed to properly catalogue the contents of the item searched. The

specific objectives of an inventory search, particularly in the context of a vehicle, are to protect the property of the defendant, to protect the police against any claim of lost property, and to protect police personnel and others from any dangerous instruments ... As the Supreme Court has stated, "an inventory search must not be a ruse for a general rummaging in order to discover incriminating evidence". To guard against this danger, an inventory search should be conducted pursuant to "an established procedure clearly limiting the conduct of individual officers that assures that the searches are carried out consistently and reasonably." While incriminating evidence may be a consequence of an inventory search, it should not be its purpose."

Patrol Guide procedure 212-123 (**BR 63**) states that officers are required to activate their BWC when searching an individual, and/or their belongings, vehicle, and/or home, except for strip searches.

An inventory search requires officers to voucher all items removed from a vehicle during an inventory search. Despite § 87(2)(b) agreeing to release the property to a family member, which occurred over an hour after the search was conducted, PO Hanson, the arresting officer, was still required to voucher the property, as it would otherwise be impossible to determine if anything was missing, which is the purpose of conducting the inventory search. § 87(2)(g) BWC shows PO Hanson stating that he would not complete property vouchers if § 87(2)(b) agreed to release the property, § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation AG** be **substantiated**.

The discussed BWC does not capture any officer handling the gas flap or tape player of the vehicle, or mishandling any items removed from the vehicle. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations AG, AH, AI, AJ, and AK** be closed as **unable to determine**.

Officers are required to activate their BWC during any police action, including inventory searches of vehicles. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation AL** be **substantiated**.

Allegation (AM) Untruthful Statement: On January 04, 2024, at 100 Church Street in Manhattan, Police Officer Ricardo Maldonado provided a false official statement to the CCRB.

PO Hanson's BWC (**BR 23**) shows that PO Maldonado is standing by the door frame, leading to the cell area, while other officers assist in removing § 87(2)(b) and § 87(2)(b) property. At the 01:40 mark, § 87(2)(b) accuses PO Maldonado of having kicked him in the face. When PO Maldonado asks, "who," § 87(2)(b) reiterates that he is speaking to him. § 87(2)(b) then accuses PO Maldonado of having blown a kiss at him at that moment. The video does not capture PO Maldonado at the time of the accusation.

The stationhouse surveillance video of the holding cell area (**BR 81**) captures PO Maldonado placing his hand on his mouth, at the 18:16 mark, puckering his lips to kiss his hand, and then moving his hand in the direction the space in front of him, with his lips still puckered.

PO Maldonado (**BR 82**) denied blowing a kiss at § 87(2)(b) When presented with the surveillance footage three times, once prior to the interview and twice during the interview, PO Maldonado described his action as waving at PO Guerrido. He was unable to determine what his lips were doing during the alleged wave and did not see them puckered. However, PO Maldonado acknowledged that his "waving" could have been perceived as him blowing a kiss, though he denied actually blowing a kiss several times in his statement.

NYPD Administrative Guide 304-10 (BR 86) defines a false statement as an intentional statement that a member of service knows to be untrue, which is material to the outcome of an investigation. A material fact is defined as a significant fact that a reasonable person would recognize as relevant to, or affecting, the subject matter of the issue at hand, including any foreseeable consequences, or establishment of the elements of some proscribed conduct. Officers are prohibited from making false official statements.

The surveillance footage clearly captures PO Maldonado conducting an action that objectively depicts the blowing of a kiss, as he placed his hand on his mouth, puckered his lips, and released the hand in the direction of § 87(2)(b). However, when presented with the video three times, PO Maldonado denied that he blew a kiss or even puckered his lips, noting that his action was simply a wave to his partner. § 87(2)(g)

it is recommended that **Allegation AM** be **substantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first complaint in which § 87(2)(b) and § 87(2)(b) have been named parties (**BR 74, BR 75, BR 76**)
- PO Hickey has been a member of service for eight years. He has been named the subject in three other CCRB complaints and eight allegations, one of which has been substantiated:
 - 201906504 involves a substantiated allegation of failure to obtain language interpretation. The NYPD imposed formalized training.
- PO Guerrido has been a member of service for five years. He has been named the subject in two other CCRB complaints and seven allegations, none of which have been substantiated.

- PO Hanson has been a member of service for four years. He has been named the subject in four other CCRB complaints and 10 other allegations, two of which have been substantiated:
 - 202100688 involves substantiated allegations of failure to provide right to know act card and search of person. The NYPD imposed formalized training.
- PO Maldonado has been a member of service for four years. He has been the subject of four other CCRB complaints and seven allegations, none of which have been substantiated.
- PO Valentin has been a member of service for seven years. He has been named the subject in nine other allegations, two of which were cited as § 87(2)(g), § 87(4-b) [REDACTED]
- PO Piehler has been a member of service for four years and this is the first CCRB complaint in which he was named a subject.
- PO Rinaldi has been a member of service for four years. He has been named the subject in two other CCRB complaints and four allegations, none of which were substantiated.
- PO Mohamed has been a member of service for eight years. He has been named the subject in three other CCRB complaints and four allegations, none of which have been substantiated.
- Erica Silhan resigned from the NYPD on March 29, 2023. Prior to resigning, PO Silhan was named the subject in one other CCRB complaint and three allegations, none of which were substantiated.
- Sgt. Basler began his retirement process as of July 6, 2023; however, he is still technically active. Sgt. Basler was named the subject in 13 other CCRB complaints and 30 allegations, one of which was substantiated and one that was cited as § 87(2)(g), § 87(4-b) [REDACTED]
- 201304834 involves a substantiated allegation of entry and/or search of premises. APU found Sgt. Basler guilty, and the NYPD recommended that he forfeit two vacation days.

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation.
- On December 14, 2023, the Office of the New York City Comptroller confirmed that § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] filed a notice of claim regarding this incident. § 87(2)(b) [REDACTED]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing

Squad No.: 10

Investigator:	<u><i>Jessica Russo</i></u>	<u>SI Jessica Russo</u>	<u>01/08/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Maura R. Roche</u>	<u>IM Maura R. Roche</u>	<u>01/08/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date